

Tentative Rulings for September 16, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202954	LAPAY VS THE FAIRWAYS HOMEOWNER'S ASSOCIATION	HEARING RE: MOTION FOR ATTORNEYS FEES

Tentative Ruling: No tentative ruling. Hearing is continued to 12.02.26.

The court notes that Defendants' Motion for Attorney's Fees was filed on 5.06.26 with a hearing date of 6.12.26. Plaintiff's attorney, JC Chimoures, filed notice of Motion to be Relieved as to Plaintiff Simone Marie Lapay on 5.12.26, with a hearing on that motion for 6.29.26. An ex parte by Plaintiff's counsel to move the fee motion was granted on 5.19.26, moving the fee motion to 8.29.26. During that time frame, the court permitted Ms. LaPay additional time to seek counsel while the procedural issues of having Chimoures officially relieved remained. On 7.20.26 the court indicated that Ms. Lapay would be given additional time to find an attorney if necessary.

Defendants filed a notice of non-opposition indicating that Plaintiff failed to oppose the motion that was set for 8.29.26, missing the deadline of 8.18.26. However, the court notes that the motion was pending during the exact time the court was giving Ms. Lapay time to find a new attorney, and a substitution of attorney was filed on 8.27.26.

Due to those circumstances, the court shall permit Plaintiff's new attorney James L. Arrasmith to file an opposition to the Motion for Attorney's Fees, to be filed no later than 11.17.26. Defendants' Reply to be filed no later than 11.23.26.

No other briefing shall be permitted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503181	CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO VS DESERT REGIONAL MEDICAL CENTER	MOTION TO SET ASIDE ON 2ND AMENDED COMPLAINT OF FRANCISCO CARREJO, BY AND THROUGH HIS SUCCESSORS IN INTEREST ROSALINDA FRAUSTO

Tentative Ruling: Pursuant to section 2033.300, a party can withdraw or amend a response to a request for admission only with leave of court, if the court finds that the admission was the result of a mistake, inadvertence or excusable neglect and if the propounding party will not be substantially prejudiced by allowing the admission to be withdrawn or amended. Section 2033.300(a) permits amendment or withdrawal of "deemed admissions" ordered by a court under § 2033.280(b). (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) Section 2033.300 is designed to eliminate undeserved windfalls obtained through requests for admission and to further the policy favoring resolution of lawsuits on the merits. Therefore, any doubts must be resolved in favor of the party seeking relief. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.) The terms "mistake, inadvertence or excusable neglect" as used in section

2033.300 are given the same meanings as similar terms found in section 473(b). (*Id.* at 1419.) Denial of a motion to withdraw or amend an admission “is limited to circumstances where it is clear the mistake, inadvertence or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining the party’s action or defense on the merits.” (*Id.* at 1420-1421.)

Defendant’s counsel declares that responses were finalized and prepared for service on January 19, 2026, but were not served upon counsel. Counsel further states that upon receiving Plaintiffs’ motion to compel responses to the request for admissions, served by email on January 21, 2026, he directed staff to serve the responses with a new proof of service and it was his “assumption” that his directive would be carried out, since the responses were complete and all that was needed was a “fresh Proof of Service.” Counsel acknowledges it was his “inadvertence and mistake to not follow up and make sure that my instructions were carried out, and that the motion hearing had been taken off calendar.” He also explains heavy case load and resignation of the associate on this case contributed to the inadvertence, mistake, and neglect.

While there is a notable time delay between February 26, 2026, when the admissions were deemed admitted, and July 21, 2026, when defendant filed this motion, “delay alone without a showing of substantial prejudice cannot justify the denial of a motion under the statute.” (*New Albertsons, supra*, 168 Cal.App.4th at p. 1421.) Moreover, Plaintiffs’ argument in opposition regarding counsel’s noncompliance with discovery requests in other unrelated causes is not relevant to the instant motion. DRMC has shown that responses were prepared; they simply were not served due to various office failures in communication and follow-through.

As for prejudice, the statutory standard requires that plaintiffs not be substantially prejudiced in maintaining their action on the merits. The record reflects no trial date has been set in this case. Discovery remains ongoing. The service of the 998 offer, which was not accepted, does not change this outcome. While Plaintiffs will lose the tactical advantage of having liability-determinative facts deemed admitted, that is not the type of prejudice the statute contemplates. The prejudice inquiry focuses on whether Plaintiffs can still prove their case on the merits if required to do so, not whether they will have a harder time doing so. That said, Plaintiffs have expended considerable time and resources pursuing discovery compliance from DRMC, filing multiple motions, and obtaining court orders. This expenditure of resources constitutes prejudice, though not of the type that prevents relief under section 2033.300(b).

Finally, under section 2033.300(c), “the court may impose conditions on the granting of the motion that are just, including, but not limited to, the following: (1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission. (2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.”

Plaintiffs request the Court condition the grant of the motion on: (1) defendant’s strict future compliance with all discovery deadlines, (2) on the express understanding that no subsequent motion seeking relief from another discovery default/admission will be granted, and (3) defendants may not file a motion for summary judgment or adjudication; and (4) if defendants violate these conditions, then the truth of the matters asserted in Requests for Admission, Set One, to Desert Regional, will be deemed

admitted. Plaintiffs cite to no authority to support such broad restrictions, nor do such restrictions appear “just.”

DRMC states it will accept a just monetary sanction, but no sanctions were requested in opposition. Therefore, the Court shall determine the amount of costs to be awarded to Plaintiffs upon noticed motion should they choose to file one.

Defendants Desert Regional Medical Center, Inc., and Tenet Healthcare Corporation’s Motion to Withdraw Judicially Deemed Admissions is GRANTED.

All Admissions Deemed Admitted in Plaintiff’s Request for Admissions, Set One, are WITHDRAWN.

Plaintiff may file a request for attorney’s fees on noticed motion for those fees associated with the reversal of the admissions.

Case Management Conference confirmed for 2.19.27.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509006	SHINN VS STELLANTIS, A MICHIGAN CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF MARK ALLEN SHINN BY STATE OF CALIFORNIA, ACTING BY AND THROUGH THE DEPARTMENT OF TRANSPORTATION

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

A special demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code, § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code, § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

A public entity is liable if the property was (1) in a dangerous condition at the time of the injury; (2) the dangerous condition caused the injury; (3) the dangerous condition

created a reasonably foreseeable risk of the kind of injury incurred; and (4) a negligent, wrongful or omission of a public entity employee created the dangerous condition **or** (5) the public entity had actual or constructive notice to have taken measures to protect against the dangerous condition. (Gov. C. §835.) A dangerous condition is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. C. §830(a).) Thus, public property is in a dangerous condition within the meaning of section 835 if it ‘is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself.’” (*Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1105.) There is no hard and fast rules but must depend on the facts of each case. (*Salas v. Dept. of Transp.* (2011) 198 Cal.App.4th 1058, 1069.)

Here, the complaint alleges that there were no barriers or warnings despite the curved roadway next to a steep embankment, that was hidden. (FAC ¶31.) That is the dangerous condition. Defendant’s assertion of factual specificity go towards discovery, not pleading specificity. There is sufficient notice to place Defendant on notice of the theory of the claim. The types of warnings or barriers can be determined via discovery.

Additionally, the complaint is not uncertain as to warrant sustaining a special demurrer for the inconsistency between the language of the ninth cause of action and the prayer. Regarding the request for punitive damages in the prayer, demurrers do not lie as to only parts of causes of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119 (“A demurrer must dispose of an entire cause of action to be sustained.”) The proper motion would be to strike the punitive damages language. In the opposition, Plaintiff did indicate the request for punitive damages as to the ninth cause of action “is an obvious drafting error” and would remove it. (Oppo. Pg. 14, lines 17-18).

Defendant State of California’s General Demurrer to the First Amended Complaint
OVERRULED.

Defendant State of California’s Special Demurrer to the First Amended Complaint
OVERRULED.

Defendant State of California to file an Answer within 15 days of this order.

Plaintiff is directed to remove the punitive damages request in the prayer associated with the Ninth Cause of Action.

Case Management Conference continued to 12.17.26. Counsel ordered to file new and updated Case Management Statements 10 days in advance of hearing regarding status of Discovery/Discovery timeline and Alternative Dispute Resolution. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Counsel for Defendant High Country Tire needs to address if they also represent Big O Tires. According to the register, those parties have the same representation, however the Case Management Declaration filed on behalf of High Country only listed that party, no declaration was submitted on behalf of Big O Tires.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO, FROM DEFENDANT ANTHONY ELLENZ; AND REQUEST FOR SANCTIONS

Tentative Ruling: No tentative ruling. Hearing is continued to 9.18.26 to be heard with Motion for Leave to Amend Complaint.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO, FROM DEFENDANT TIMOTHY ELLENZ; AND REQUEST FOR SANCTIONS

Tentative Ruling: No tentative ruling. Hearing is continued to 9.18.26 to be heard with Motion for Leave to Amend Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO, FROM DEFENDANT CALIFORNIA WINDOW & DOOR, INC.; AND REQUEST FOR SANCTIONS

Tentative Ruling: No tentative ruling. Hearing is continued to 9.18.26 to be heard with Motion for Leave to Amend Complaint.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2603315	ROY VS SCHNEIDER NATIONAL CARRIERS, INC., A NEVADA CORPORATION	MOTION TO STRIKE COMPLAINT OF STEVEN EDWARD ROY BY SCHNEIDER NATIONAL CARRIERS, INC., A NEVADA CORPORATION, NELSON ESCOBAR RODRIGUEZ

Tentative Ruling:

No opposition filed by Plaintiff.

Defendants' Motion to Strike Complaint GRANTED. The following portions below are STRICKEN.

- Page 3, ¶ 7, line 8: the words “owned,” “controlled,” and “entrusted” as they pertain to Defendant SCHNEIDER NATIONAL CARRIERS, INC.;
- Page 3, ¶ 8, lines 13-15: the words “trained,” “supervised,” and “retained” as they pertain to Defendant SCHNEIDER NATIONAL CARRIERS, INC.;
- Page 4, ¶ 14, line 13: the words “owned,” “maintained,” “controlled,” and “entrusted” as they pertain to Defendant SCHNEIDER NATIONAL CARRIERS, INC.; and
- Plaintiff’s entire Second Cause of Action for Negligence Per Se (as against all Defendants).

Plaintiff may file an amended complaint within 15 days of this order.

Case Management Conference rescheduled to 12.03.26.